

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
VINCENT SULLIVAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, and POLICE OFFICER
BRENTON COLE, Shield No. 20081, POLICE OFFICER
EDGAR CALDERON, Shield No. 9116, POLICE
OFFICER ALFRED GENAO, Shield No. 7231, and
POLICE OFFICERS JOHN DOES # 1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.
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SUMMONS

Index No.:

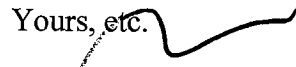
The Basis of Venue is:
Location of Incident

Plaintiff designate Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 1, 2014

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Brenton Cole, Shield No. 20081, 83rd Precinct, 480 Knickerbocker Ave,
Brooklyn, NY 11237

Police Officer Edgar Calderon, Shield No. 9116, Criminal Intelligence Section, 140-58th Street, Suite 6B, Brooklyn, NY 11220

Police Officer Alfred Genao, Shield No. 7231, 83rd Precinct, 480 Knickerbocker Ave, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VINCENT SULLIVAN,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT
JURY TRIAL DEMANDED

THE CITY OF NEW YORK, and POLICE OFFICER
BRENTON COLE, Shield No. 20081, POLICE OFFICER
EDGAR CALDERON, Shield No. 9116, POLICE
OFFICER ALFRED GENAO, Shield No. 7231, and
POLICE OFFICERS JOHN DOES # 1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

----- X
Plaintiff, VINCENT SULLIVAN, by his attorneys, Jacobs & Hazan, LLP, as and for
their Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 7, 2011, at approximately 1:00 p.m., plaintiff, VINCENT SULLIVAN, while lawfully inside of a corner store in the vicinity of Schaefer Street and Wilson Avenue, Brooklyn, New York, was subject to an unlawful, stop, search, detention, false imprisonment, and false arrest by the defendant New York City police officers. Subsequently, while at the 83rd precinct, the defendant New York City Police Officers subjected plaintiff VINCENT SULLIVAN to an unconstitutional strip-search. Plaintiff VINCENT SULLIVAN was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, caused the unjustifiable arrest of, and unconstitutionally strip-searched plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff VINCENT SULLIVAN is a resident of the State of New York.

3. New York City Police Officer BRENTON COLE, Shield # 20081, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. On the date of the incident, January 7, 2011, defendant Police Officer BRENTON COLE, Shield # 20081, was assigned to the 83rd Precinct in the County of the Brooklyn.

5. New York City Police Officer BRENTON COLE, Shield # 20081, is being sued in his individual and official capacity.

6. New York City Police Officer EDGARD CALDERON, Shield # 9116, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. On the date of the incident, January 7, 2011, defendant Police Officer EDGARD CALDERON, Shield # 9116, was assigned to the 83rd Precinct in the County of the Brooklyn.

8. New York City Police Officer EDGARD CALDERON, Shield # 9116, is being sued in his individual and official capacity.

9. New York City Police Officer ALFRED GENAO, Shield # 7231, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. On the date of the incident, January 7, 2011, defendant Police Officer ALFRED GENAO, Shield # 7231, was assigned to the 83rd Precinct in the County of the Brooklyn.

11. New York City Police Officer ALFRED GENAO, Shield # 7231, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On January 7, 2011, at approximately 1:00 p.m., plaintiff VINCENT SULLIVAN was lawfully inside of a corner store in the vicinity of Schaefer Street and Wilson Avenue, Brooklyn, NY.

20. While plaintiff was checking out at the store, two defendant police officers approached plaintiff and ordered him to exit the store with them, without probable cause, reasonably articulable suspicion, or legal justification.

21. The defendant police officers then grabbed plaintiff and physically escorted him out of the store.

22. The defendant police officers then shoved plaintiff against the side of the building, forced plaintiff to spread his legs apart, and then unlawfully frisked plaintiff over his clothing, touching all areas of his body.

23. At no time did plaintiff commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

24. The defendant police officers did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

25. Nevertheless, the defendant police officers handcuffed plaintiff without legal justification or probable cause.

26. At no time did the defendant police officers recover any guns, drugs, or contraband of any kind from plaintiff.

27. Plaintiff was handcuffed and placed under arrest without legal justification or probable cause.

28. The defendant police officers then placed plaintiff in an NYPD vehicle and transported him to the 83rd precinct, located at 480 Knickerbocker Ave, Brooklyn, NY 11237.

29. While at the precinct, the defendant police officers unconstitutionally strip-searched plaintiff.

30. Specifically, the defendant police officers forced plaintiff to take off all of his clothes and shake each piece of clothing out.

31. The defendant police officers then ordered plaintiff to turn around, and with his back facing them, forced plaintiff to bend over and spread his buttocks.

32. The defendant police officers then ordered plaintiff to face them and forced plaintiff to lift his genitals.

33. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

34. At no time did the defendant police officers have a specific, articulable factual basis supporting reasonable suspicion or probable cause to believe that plaintiff secreted contraband, evidence, or had a weapon.

35. On January 8, 2011 at approximately 9:30 a.m., plaintiff was transferred to Brooklyn Central Booking, where he was detained for many hours.

36. After approximately 24 hours in a holding cell at Brooklyn Central Booking, plaintiff was arraigned in Brooklyn Criminal Court, and released on his own recognizance.

37. Thereafter, on or about January 6, 2012, plaintiff's case was dismissed and sealed.

38. At no point during their encounter with plaintiff did defendants have reasonable suspicion to stop, question and/or frisk plaintiff.

39. At no point during their encounter with plaintiff did defendants have probable cause to detain plaintiff.

40. At no point during their encounter with plaintiff did defendants have probable cause to search plaintiff.

41. The false arrest, false imprisonment, unlawful search caused plaintiff to sustain psychological and emotional trauma. Moreover, the strip-search of plaintiff by the individually named police officer defendants caused plaintiff to sustain psychological and emotional trauma.

42. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

43. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

44. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

45. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff’s Fourth Amendment and Fourteenth Amendment Rights

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned without probable cause in violation of plaintiff’s right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search plaintiff.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of their rights under the laws of the State of New York.

58. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Stop and Frisk

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The conduct of defendants in stopping and frisking plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

64. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

70. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

78. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip-searched.

79. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff VINCENT SULLIVAN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 1, 2014

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

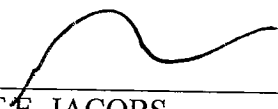
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Brenton Cole, Shield No. 20081, 83rd Precinct, 480 Knickerbocker Ave,
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58th Street, Suite 6B, Brooklyn, NY 11220
Police Officer Alfred Genao, Shield No. 7231, 83rd Precinct, 480 Knickerbocker Ave,
Brooklyn, NY 11237

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 1, 2014



STUART E. JACOBS